**REPORTABLE (3)**

**EMMANUEL MUTAMBIRWA**

**v**

**NATIONAL PROSECUTING AUTHORITY**

**CONSTITUTIONAL COURT OF ZIMBABWE**
**GARWE JCC, MAKARAU JCC & PATEL JCC**
**HARARE, 16 FEBRUARY 2026 & 18 MAY 2026**

*L. Madhuku* for the applicant

*W. Mabaudhi* for the respondent

**PATEL JCC:** This is a court application for direct access to the Constitutional Court. The application is brought in terms of s 167(5) of the Constitution of Zimbabwe, as read with r 26 of the Constitutional Court Rules, 2025. The intended substantive application seeks to challenge the decision of the Supreme Court in *Emmanuel Mutambirwa* v *The* State delivered under SC-60-25.

**The Background**

The applicant was employed as a Manager in the Estates and Valuation Division of the City of Harare. The respondent is the National Prosecuting Authority of Zimbabwe, responsible for instituting and undertaking criminal prosecutions on behalf of the State.

On 8 July 2024, the applicant and his co-accused were arraigned before the High Court, facing the charge of criminal abuse of office as defined in s 174 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code). The charge centred around the allegations that the applicant and his co-accused had unlawfully sold land belonging to the City of Harare to some buyers whom they had deliberately favoured. The State alleged

that, between September 2018 and August 2020, the applicant and his co-accused facilitated the sale of commercial stands to three sister companies, on land leased to Old Hararians Sports Club, without following legal procedures.

The State alleged that the applicant and his co-accused criminally abused their duties as public officers by selling urban land in violation of the law, favouring the three sister companies and disadvantaging Old Hararians Sports Club. The offence included failure to give public notice under s 152(2) of the Urban Councils Act [*Chapter 29:15*], failure to follow change of reservation procedures under s 49(3) and (4) of the Regional Town and Country Planning Act [*Chapter 29:12*], selling the land contrary to the sub-divisional plan and disregarding the land's zoning for public recreation purposes. The State indicated that the sale also violated a 2005 Council resolution requiring public tender.

In response to the charge, the applicant pleaded not guilty and denied acting unlawfully or intentionally against his statutory duties. He also denied acting in common purpose with his co-accused in the alleged illegal sale of the three commercial stands. He admitted participating in the creation and sale of the stands but argued that this did not amount to an offence. He maintained that, as custodian of Council land, he did not act wrongly. He asserted that although he knew the land was leased to Old Hararians Sports Club, he did not cause any prejudice as he did not initiate any change to the use of that land.

At the end of the trial, the High Court found the applicant and one of his co-accused guilty. It was the High Court's finding that the applicant had been involved in the creation of the stands in question and the process leading to their sale to the three companies. The court further found that the applicant, at the relevant time, was the custodian of Council land and he knew that the land was on lease to Old Hararians Sports Club and that the lease agreement would only expire in 2044. The High Court also found that there was no compliance with the

peremptory provisions of s 152 of the Urban Councils Act, pertaining to the alienation of Council land and the reservation of land for State purposes. It was the court's position that by virtue of the offices the applicant and his co-accused held in the Council at the material time, it would not have been possible for the land to be unlawfully subdivided, let alone unlawfully sold, without their involvement. The High Court also held that the fact that some other persons in the employ of the Council may have been complicit in the commission of the offence did not detract from the fact that the State had managed to prove the case against the applicant and his co-accused beyond a reasonable doubt.

In the event, the applicant was sentenced by the High Court to 10 years imprisonment with 1 year suspended on condition of good behaviour. The applicant is currently in prison serving his sentence.

Aggrieved by the decision of the High Court, the applicant made an application before that court for leave to appeal to the Supreme Court against both his conviction and sentence, but the application was denied. Dissatisfied with that refusal, the applicant made an application for leave to appeal before the Supreme Court, which application was also denied.

**The Application before the Supreme Court**

In determining the application before it, the Supreme Court considered the elements of abuse of public office in contravention of s 174 of the Criminal Law Code. The court *a quo* held that it was common cause that the applicant, in his capacity as a public officer, participated in the creation of the three commercial stands for sale to the three handpicked sister companies. Further, it held that it was also common cause that, in his capacity as Manager, Estates and Valuation Division of the City of Harare, the applicant was the custodian of the stands and was vested with full knowledge of the law pertaining to the sale or otherwise of such land.

The court *a quo* also held that the *actus reus* constituting the commission of the offence was not in dispute. It held that the applicant's undisputed acts in the following respects amounted to the commission of acts constituting the essential elements of the offence: he was a public officer; he participated in the irregular sale of the three stands; the three stands were sold to handpicked companies to the prejudice of members of the public and Old Hararians Sports Club; and, in so doing, he was in breach of his duties as a public official and custodian of the land in question.

Regarding the *mens rea,* the applicant sought to argue that the fact that the City of Harare itself participated in the sale of the land, through the meetings, resolutions and recommendations of its Finance and Development Committee, showed that he did not have the requisite *mens rea* to commit the offence. However, in concluding that the applicant did have the requisite *mens rea*, the court *a quo* relied on the High Court's findings and held that the High Court's findings, coupled with the applicant's deliberate failure to observe the basic procedures and safeguards relating to the sale of Council land, were damning against the applicant's claim of lack of *mens rea.* The court also held that the sentence imposed was appropriate, given the seriousness of the offence and the need to protect public property. The court *a quo,* therefore, came to the conclusion that the applicant had no reasonable prospects of success on appeal and denied the applicant leave to appeal.

**The Application for Direct Access**

Irked by the decision of the Supreme Court, the applicant has approached this Court seeking direct access. The applicant alleges that the decision of the court *a quo* in SC-60-25 infringed three of his fundamental rights.

Firstly, he alleges that the court denied him his right to appeal to a higher court against both his conviction and sentence, as guaranteed by s 70(5) of the Constitution. He contends

that this right was infringed by the court in that, in considering his prospects of success in respect of conviction, it had to consider all the proposed grounds of appeal and evaluate each one of them. He contends that the court *a quo,* instead of considering his six proposed grounds of appeal, arbitrarily picked one narrow issue of *mens rea,* which it did not relate to any particular proposed ground of appeal, and ignored all the other proposed grounds of appeal. The applicant also alleges that the proposed ground of appeal against the sentence imposed was totally ignored. He therefore contends that there was a total failure of justice in that his application for leave to appeal was never truly considered, as the court *a quo* did not proceed in the established manner in which applications for leave are dealt with.

Secondly, he contends that his right to personal liberty under s 49(1)(b) of the Constitution was infringed because he was further detained arbitrarily following irregular proceedings. Thirdly, he asserts that his right to the protection of the law, enshrined in s 56(1) of the Constitution, was also breached in that he was treated differently from one of his co-accuseds who was granted leave to appeal by the High Court.

The applicant avers that the intended substantive application has prospects of success. He argues that no reasonable judge, properly applying the law, could have found that there were no reasonable prospects of success, rendering the decision *a quo* irrational. The applicant alleges that no other remedy is available to him, given that the Supreme Court is the final court in non-constitutional matters.

If granted leave, the applicant intends to bring a substantive constitutional application in terms of s 85(1) of the Constitution, seeking declaratory and consequential relief for the violation of his constitutionally protected rights by the Supreme Court under Judgment No. SC 60-25. The rights claimed to have been infringed are the applicant`s right to appeal to a higher court against conviction and sentence enshrined in s 70(5), the right not to be deprived of his

liberty without just cause guaranteed by s 49(1)(b), and the right to the protection of the law in terms of s 56(1). The relief that the applicant seeks is an order that the judgment of the Supreme Court be declared null and void and of no force or effect, that it be set aside and that the matter be remitted to the court *a quo* for determination *de novo* before a different judge.

**Submissions by Counsel**

Mr *Madhuku*, for the applicant, submits that the Supreme Court did not act in accordance with the procedure governing leave to appeal and thereby infringed the applicant's rights. In particular, he argues that the court *a quo* did not systematically consider all six of the proposed grounds of appeal in its determination of the application for leave to appeal. On that basis, counsel argues that the judgment was arbitrary. He further submits that none of the grounds was abandoned, despite not having been specifically motivated. In any event, the court *a quo* did not state which, if any, of the grounds was abandoned, as required by the law, and should not have taken an omnibus approach to the six grounds of appeal. By so doing, the court considered the question of *mens rea* without relating it to any specific ground of appeal. Similarly, although the court did consider the nine years prison term imposed, its judgment was very thin in this respect.

Mr *Madhuku* submits that the Supreme Court failed to properly consider s 70(5) of the Constitution, which creates a right of appeal that can only be denied by the courts in hopeless cases. The threshold for prospects of success in relation to s 70(5) is lower and merely requires an arguable case. The court *a quo* did not articulate the applicable test in this regard that aligns with s 70(5). Additionally, the court infringed the applicant's right of appeal under s 70(5) by taking an omnibus approach and not canvassing all of the grounds of appeal.

Mr *Madhuku* further submits that the applicant's right to liberty, guaranteed by s 49 of the Constitution, was arbitrarily infringed, as the applicant's continued stay in prison would not

have been on the basis of a just cause. Counsel further submits that the applicant's right to equality, enshrined in s 56 of the Constitution, was also violated, as one of his co-accuseds was differentially treated by having been granted leave to appeal by the High Court.

*Per contra,* Mr *Mabaudhi*, for the respondent, submits that the Supreme Court did not err in dismissing the application for leave to appeal. The court gave full reasons for denying the applicant leave to appeal. All the issues raised in the six grounds of appeal were canvassed in its judgment, albeit in an omnibus fashion, and no prejudice was occasioned to the applicant as a result of this approach. Furthermore, the court *a quo* correctly considered and dealt with the *mens rea* and *actus rea* elements in the course of its judgment.

Mr *Mabaudhi* submits that there were no prospects of success on appeal and the Supreme Court correctly dismissed the application for leave to appeal. In any event, the Constitution does not afford protection against the possibly wrong but final decisions of the Supreme Court.

**The Governing Principles**

The principles governing direct access to this Court are well established. Not every individual who raises a constitutional issue has an automatic entitlement to approach the Court directly. Direct access is a discretionary remedy that is granted only where the requirements set out in the Court's rules are strictly satisfied. Rule 26(4) prescribes the essential criteria that must be addressed in any such application, particularly, whether it is in the interests of justice to grant the relief sought.

In addition, r 26(9) identifies the principal considerations that guide the Court in evaluating the interests of justice, to wit, the prospects of success and the availability of alternative remedies. However, these considerations are not exhaustive. The central question

in the present application is whether the interests of justice favour granting the applicant direct access to this Court.

**Whether there is a Constitutional Matter before the Court**

To determine whether the present application has merit, it is necessary, as a preliminary matter, to establish whether a constitutional issue arises for determination by this Court. A constitutional matter is defined in terms of s 332 of the Constitution as one involving the interpretation, protection, or enforcement of the Constitution. In *Moyo* v *Chacha & Ors* 2017 (2) ZLR 142 (CC), at 150D, this Court explained the significance of a constitutional matter as follows:

> "The import of the definition of 'constitutional matter' is that the Constitutional Court would be generally concerned with the determination of matters raising questions of law, the resolution of which require the interpretation, protection or enforcement of the Constitution.
> The Constitutional Court has no competence to hear and determine issues that do not involve the interpretation or enforcement of the Constitution or are not connected with a decision on issues involving the interpretation, protection or enforcement of the Constitution."

Furthermore, a constitutional matter arises where the relief sought by a party alleging an infringement of a right can only be obtained through the interpretation, protection, or enforcement of a provision of the Constitution and not through the application of any subsidiary legislation.

The present application challenges a decision of the Supreme Court. However, the matter that was before the court *a quo* was not itself a constitutional matter and the order granted by that court did not concern a constitutional question. That, however, does not necessarily conclude further enquiry into the decision of the court.

The jurisprudence of this Court is clear regarding when its jurisdiction may be invoked in relation to decisions of the Supreme Court. In *Zimbabwe Consolidated Diamond Company (Pvt) Ltd* v *Adelcraft Investments (Pvt) Ltd* CCZ 2-24, the Court emphasised that a decision of

the Supreme Court in a non-constitutional matter is final, and its correctness cannot be challenged merely on the basis that it may be wrong. Nevertheless, the Court adopted the principles articulated in *Lytton Investments (Pvt) Ltd* v *Standard Chartered Bank Zimbabwe Ltd and Another* 2018 (2) ZLR 743 (CC) regarding the circumstances in which the Constitutional Court may scrutinise a final determination of the Supreme Court in a non-constitutional matter. The facts must demonstrate a real likelihood that the Supreme Court infringed the applicant's right to judicial protection by failing to act in accordance with the law governing the proceedings or prescribing the substantive rights and obligations involved. Such a failure must have disabled the court from properly determining the issues before it and resulted in an irrational or arbitrary decision. Put differently, the principle underlying constitutional review of a Supreme Court decision in a non-constitutional matter is that a litigant may have suffered a loss of rights as a result of the court's failure to act in accordance with the law. There must be proof of non-compliance with the applicable legal requirements, and that failure must be shown to have produced an irrational or arbitrary decision leading to the violation of a fundamental right.

Similarly, in *Unifreight Africa Limited* v *Mashinya* CCZ 13-24, the Court emphasised that where proceedings in the subordinate court were not premised on the interpretation, protection or enforcement of the Constitution, no constitutional issue arises merely because a party alleges that a fundamental right has been infringed. The Court reiterated that its jurisdiction in relation to decisions of the Supreme Court is ordinarily triggered only where there is evidence demonstrating that the impugned decision violated one or more of the applicant's fundamental rights. However, a bare allegation of such infringement does not, without more, create a constitutional issue. In other words, the mere assertion that a Supreme Court decision infringed a constitutional right is insufficient. It must be clearly demonstrated

how the alleged right was violated and whether such a violation in fact occurred. This position was previously affirmed in *Chani* v *Mwayera NO & Ors* 2020 (1) ZLR 17 (CC).

In the broader context of constitutional review, a recent decision of the South African Constitutional Court affords an alternative test or concept styled "failure of justice" which occurs where a court fails to do what is expected of it. This test, which I am inclined to adopt as an additional rung, was expounded in *Vodacom (Pty) Ltd* v *Nkosana Kenneth Makate* [2025] ZACC 13, at paras 43-45, as follows:

> "Whatever the attendant difficulties, is the real question not whether there has been a total failure of justice? In this context, I am not concerned with the esoteric debates about what justice is. I am concerned with justice in the sense of a reasonable expectation that - within the bounds of human fallibility - courts will do what is expected of them. Justice and, indeed, the court process are not about perfection; courts are not to be held to some abstract standard of perfection….If, with that in mind, there has been a failure of justice, I find it difficult to understand why that does not constitute a denial of the right to a fair hearing protected by section 34 of the Constitution…What is important is that the flaws in the assessment must be so fundamental and pervasive as to vitiate the court`s judgment. There must have been a failure in the performance of what I will call a duty of proper consideration…. Once vitiated by the flaws of the nature I have described, a court`s decision is a non-decision. Without a decision, a court will have failed in its very *raison d`etre* …"

In the present matter, as I have already stated, the proceedings before the Supreme Court did not involve a constitutional question, and the order granted by that court was not made in relation to any constitutional issue. Although the applicant intends to approach this Court in terms of s 85 of the Constitution, alleging violations of several constitutional rights, that fact alone does not automatically give rise to a constitutional matter capable of invoking the Court's jurisdiction. Accordingly, for the applicant to successfully approach this Court in terms of s 85 of the Constitution in order to impugn the judgment of the Supreme Court, he must establish that the court *a quo* acted in a manner so fundamentally contrary to the law as to abdicate its duty of proper consideration and thereby violated one or more of his fundamental rights.

I would qualify the above broad proposition by observing that it pertains to the prospects of success rather than the question of standing to approach the Court. Generally speaking, one only has to allege an infringement of a fundamental right for the Court to be seized with the matter. However, as I have observed earlier, a mere bald allegation is not sufficient. The allegation must set out the facts and the law that form the basis of the jurisdiction of this Court. Whether or not the allegation is subsequently established does not arise in an enquiry as to whether the matter is properly before the Court.

*In casu*, I take the view that the application does raise a proper constitutional matter, particularly *apropos* the interpretation and application of s 70(5) of the Constitution. It accordingly becomes necessary to address and evaluate its prospects of success in that regard.

**Right to Appeal in Criminal Matters**

The applicant alleges that the court *a quo* violated his right to appeal as enshrined in s 70(5) of the Constitution in the manner in which it dealt with his application for leave to appeal. He further contends that, as a consequence of the alleged violation of his right under s 70(5), his rights under ss 49 and 56 of the Constitution were also infringed.

At the hearing of the matter, counsel for the applicant submitted that the right provided for under s 70(5) creates a presumption in favour of an appeal, such that leave to appeal should only be refused where the proposed appeal is clearly hopeless. It is therefore necessary, in the first instance, to examine the scope and import of the right guaranteed under s 70(5), before proceeding to determine whether the court *a quo* acted in a manner that violated that right.

Section 70(5) of the Constitution, in its relevant portions, provides as follows:

"**70 Rights of accused persons**
(1) Any person accused of an offence has the following rights –
(2) …..
(3) ….
(4) …

(5) Any person who has been tried and convicted of an offence has the right, subject to reasonable restrictions that may be prescribed by law, to –
    (a) have the case reviewed by a higher court; or
    (b) appeal to a higher court against the conviction and sentence."

I note at this juncture that the express constitutional recognition of the right to review or appeal in criminal matters specifically emerged with the advent of the 2013 Constitution. Under the former constitutional dispensation, the rights of accused persons were primarily provided for under s 18(3) of the Constitution, which fell under the broader heading of "Provisions to secure protection of the law." While that provision safeguarded certain aspects of fair trial and due process, it did not expressly provide for a right of appeal.

The explicit articulation of this right only came with the introduction of s 70 of the current Constitution, which comprehensively enumerates the rights of accused persons. Among these is the right, in terms of s 70(5), for a convicted person to appeal to, or seek review by, a higher court. The inclusion of this provision reflects a deliberate constitutional development aimed at strengthening procedural safeguards within the criminal justice system and ensuring that persons convicted of criminal offences have express access to an additional layer of judicial scrutiny.

It is therefore evident that, under the current constitutional framework, the right to appeal or seek review is no longer merely a procedural entitlement created by statute or rules of court. Rather, it is a constitutionally entrenched right forming part of the broader guarantee of a fair trial. Its elevation to constitutional status underscores the importance attached to appellate oversight as a mechanism for correcting errors, promoting consistency in the administration of criminal justice, and generally safeguarding the rights of accused persons.

**Right to Appeal Subject to Reasonable Restrictions**

The next question that arises is whether the right to appeal is absolute and capable of being exercised without limitation. A proper reading of the right itself indicates that it is not.

The right is expressly qualified by the phrase "subject to reasonable restrictions that may be prescribed by law." The right provided for under s 70(5) is therefore not absolute. It contains an internal limitation, to wit, reasonable restrictions that may be prescribed by law. Thus, the Constitution itself contemplates that the right to appeal or review may be regulated and restricted by law. Furthermore, it must be emphasised that the right does not fall within the category of rights that are expressly declared to be non-derogable under s 86(3) of the Constitution.

One notable restriction is the requirement, in certain circumstances, to obtain leave to appeal. However, leave to appeal is not required in every instance, in particular, where the appeal is engaged on a question of law alone. In the present matter, the intended appeal was a criminal appeal from the High Court to the Supreme Court and, therefore, the provisions of s 44 of the High Court Act [*Chapter 7:06*] were applicable. Of particular relevance is s 44(2) which provides as follows:

> "**44 Right of appeal from High Court in criminal cases**
> (1) …. .
> (2) A person convicted on a criminal trial held by the High Court—
> (*a*) may appeal to the Supreme Court against his conviction on any ground of appeal which involves a question of law alone;
> (*b*) may, with the leave of a judge of the High Court or, if a judge of the High Court refuses to grant leave, with the leave of a judge of the Supreme Court, appeal to the Supreme Court against his conviction on any ground of appeal which involves a question of fact alone or a question of mixed law and fact …. ."

It is clear from the foregoing that where the intended grounds of appeal raise questions of fact alone, or questions of mixed law and fact, leave to appeal must first be obtained. The obvious rationale for this requirement lies in the nature of such appeals. In criminal appeals involving factual or mixed fact and law questions, the appellate court is required to interrogate the factual findings of the trial court and determine whether or not there was a misdirection on the evidence. In such instances, leave to appeal is necessary to avoid or minimise undue

interference with the factual findings of the trial court which is ordinarily better placed to scrutinise and evaluate the factual dimensions of the matter at hand.

In any event, the requirement to seek leave to appeal does not mean that the door to appellate review is closed to a litigant. Rather, it establishes a procedural threshold that must first be attained. The court seized with the application for leave must assess whether the intended appeal has reasonable prospects of success. This mechanism serves an important filtering function: it ensures that appeals which are clearly devoid of merit do not proceed to a full appellate hearing, while at the same time it preserves the right of litigants to pursue appeals that raise arguable or potentially meritorious issues.

The rationale underlying the constitutional protection of the right to appeal, as well as the permissibility of reasonable restrictions on that right, has been articulated in comparative constitutional jurisprudence. In *S* v *Steyn* 2001 (1) SA 1146 (CC), at para 23, the Constitutional Court of South Africa emphasised that the right of appeal serves an essential function within the criminal justice system. The Court observed that the purpose of the right is to ensure the existence of a reasonable procedure through which errors that may have occurred at the trial stage can be corrected. Given that criminal convictions frequently result in custodial sentences, which directly curtail an individual's liberty and affect his or her dignity, it is imperative that the justice system incorporates procedural safeguards designed to minimise wrongful convictions and inappropriate sentences.

The court in *Steyn's* case (*supra*) further explained that an appeal mechanism constitutes an important re-assessment tool within this framework, as it provides a structured means of reviewing potential errors made by trial courts. However, the Court also acknowledged that appellate procedures may legitimately incorporate certain restrictions. These restrictions are not aimed at undermining the right of appeal itself, but rather at balancing the need for effective

error-correction with the practical necessity of managing the appellate system. In particular, the court noted that restrictions on appeals often arise from the need to prevent appellate rolls from being overwhelmed by frivolous or unmeritorious appeals and to ensure the efficient functioning of appellate courts. (See also *S* v *Rens* 1996 (1) SA 1218 (CC) in the context of permissible restrictions to any absolute right of appeal).

The reasoning in *Steyn* resonates with the position under our own constitutional framework. While s 70(5) of the Constitution entrenches the right of a convicted person to appeal or seek review, it simultaneously recognises that the enjoyment of this right may be subject to reasonable limitations prescribed by law. The requirement to obtain leave to appeal in certain circumstances, such as where the proposed grounds raise questions of fact or mixed law and fact, must therefore be understood within this broader context. It serves as a procedural filter intended to ensure that the appellate process remains an effective mechanism for correcting genuine errors, while preventing the appellate system from being burdened by hopeless or frivolous appeals.

**Reasonable Prospects of Success**

Having established that the right to appeal is not absolute but is subject to compliance with the requirements governing applications for leave to appeal, it becomes necessary to consider the legal principles applicable to such applications. The requirements that must be satisfied in an application for leave to appeal have been articulated in a number of decisions within this jurisdiction.

In *Prosecutor General* v *Intratek Zimbabwe (Pvt) Ltd & Anor* S-59-19, at p 13, the Supreme Court explained the nature of its role when dealing with applications for leave to appeal as follows:

> "As for the requirement of leave to appeal to be obtained before the right to appeal can be exercised, this Court is vested with an essentially gatekeeping function, *viz.* to allow only cases that deserve to be heard on appeal to pass muster. What this entails is an evaluation of the grounds of appeal to be relied upon and their prospects of success at the intended appeal. See *Chikurunhe & Ors* v *Zimbabwe Financial Holdings* SC 10-08; *Chipangura* v *Environmental Management Authority* SC 35-12."

Similarly, in *Mpofu* v *NSSA* S-105-22 at p 2, the Supreme Court reiterated that:

> "In an application of this nature an applicant must satisfy the court that he or she has prospects of success in the intended appeal before the court can grant leave to appeal. In other words, this court performs a gate-keeping function to keep out any proposed appeals without merit. This is done in order to avoid clogging the appeals roll with cases which will not succeed."

What emerges from the foregoing authorities is that, when determining an application for leave to appeal, the court must evaluate the proposed grounds of appeal and determine whether they disclose reasonable prospects of success.

What is countenanced by "reasonable prospects of success" has been considered and expounded by this Court in a number of cases. In the specific context of courts of appeal, the content of the governing test has been examined and clarified, both in South Africa and in this jurisdiction. In *Essop v S* [2016] ZASCA 114, the court explained that:

> *"*What the test for reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

Within this jurisdiction, the same principle was succinctly articulated in *Bwititi* v *Stanley Farms (Pvt) Ltd & Ors* S-112-21, at p 7, where the court stated**:**

> "Prospects of success entail that there is a reasonably arguable case depicted from the grounds of appeal. The prospects of success on appeal have to be realistic and not remote. Once there is a sound and rational basis that the case is arguable on appeal, then there are prospects of success warranting the indulgence to be granted."

These authorities collectively demonstrate that an applicant for leave to appeal bears the burden of establishing that the intended appeal has genuine and realistic prospects of success, founded on a sound and rational basis in both fact and law. Only where such prospects are adequately demonstrated will the court permit the appeal to proceed.

**The Approach Adopted by the Supreme Court**

The present matter raises the question whether the Supreme Court, in undertaking its inquiry into the prospects of success, improperly adopted an omnibus approach rather than specifically assessing each of the six proposed grounds of appeal individually.

In determining the prospects of success, the Supreme Court considered whether the elements of abuse of public office in terms of s 174 of the Criminal Law Code had been established. The court concluded that both the *actus reus* and *mens rea* elements had been satisfied and that the High Court had therefore correctly convicted the applicant.

The meaning and essential elements of the offence of abuse of public office were explained in *Undenge* v *The State* S-23-21, at p 7, as follows:

> "Professor G Feltoe in his book *A Guide to the Zimbabwean Criminal Law,* 3rd Ed Legal Resources Foundation, 2004, sets out the elements of criminal abuse of duty by a public officer as follows:
>
> > 'Ingredients [s 174 (1)] – A public officer, in the exercise of his or her functions as such, intentionally *does anything that is contrary to or inconsistent with his or her duty as a public officer*; or omits to do anything which it is his or her duty as a public officer to do *for the purpose of showing favour or disfavour to any person*.' (emphasis added)
>
> From these elements, it can be noted that the crime is centred on a public officer's exercise of duties. If a public officer acts contrary to his duties in order to show favour or disfavour to any person, he would have abused his office for purposes of s 174 (1) of the Code. The only exception is where favour or disfavour is made in furtherance of a government policy aimed at the advancement of persons historically disadvantaged by discriminatory laws or practices. See s 174 (3) of the Code. The word 'intentionally' means that the conduct constituting abuse must be deliberate, calculated or purposeful and 'abuse' connotes misuse, exploitation, taking advantage and recklessness in that conduct."

Both the High Court and the Supreme Court applied these principles and found that the applicant and his co-accused, as public officers, participated in the irregular sale of three stands to handpicked companies to the prejudice of members of the public and Old Hararians Sports Club. In doing so, the applicant breached his duties as a public official and custodian of the land concerned. With regard to the sentence, the Supreme Court further held that, given the seriousness of the offence and the need to safeguard public property, the sentence imposed by the High Court was appropriate. It was therefore concluded that the intended appeal had no reasonable prospects of success and the applicant was accordingly refused leave to appeal.

I find no fault with the approach adopted by the Supreme Court. The applicant sought to challenge both his conviction and sentence on the basis that, on the facts before the High Court, he had been wrongly convicted and consequently wrongly sentenced. The court *a quo* was therefore required to determine whether the applicant's conduct satisfied the essential elements of the offence for which he had been convicted. Having concluded that those elements had indeed been established, it followed that the applicant had no arguable basis upon which to challenge his conviction before an appellate court. In those circumstances, once the Supreme Court had determined that the core issue, *viz.*, the correctness of the conviction, had been resolved against the applicant, there was no strict necessity for the court to address each of the six proposed grounds of appeal individually and separately. As I have already emphasised, the enquiry in an application for leave to appeal is confined to determining whether the proposed appeal discloses a reasonably arguable case with realistic prospects of success.

In any event, the law is settled that once a court determines a critical or dispositive issue, that finding may bring the enquiry to an end. This principle was reiterated in *Gospel of God Church International 1932* v *Mungweru & Ors* S-99-19, at p 6, where the Court explained that it is established judicial practice to decide no more than what is strictly necessary for the

resolution of the dispute before the court. Where a dispositive finding has been made, entailing the unavoidable conclusion that the application for leave to appeal is ill-founded, there is no obligation on the court to proceed further and pronounce on relatively non-critical or additional issues.

In light of foregoing considerations, I am of the considered opinion that the Supreme Court acted in accordance with the applicable procedural and substantive law governing applications for leave to appeal in criminal matters. To put it differently, I am unable to discern any fundamental or pervasive "failure of justice" or "failure in the performance of a duty of proper consideration" (*c.f.* the *Vodacom* case, *supra*) constituting a denial of the right to appeal such as to vitiate the judgment of the court *a quo*. Furthermore, it cannot be said that the court *a quo* failed to act lawfully or rationally or that its conduct resulted in any violation of the applicant's right to appeal protected by s 70(5) of the Constitution.

Having reached that conclusion, it follows that there is no meaningful basis for the alleged consequential violations of the applicant's right to liberty under s 49(1)(b) and his right to the protection of the law in terms of s 56(1) of the Constitution. His assertions in both of these respects are logically ancillary to the alleged violation of his right to appeal under s 70(5) and are therefore rendered irrelevant and otiose once it is established that he has no prospects of success in relation to that right.

**Disposition**

Having regard to all of the foregoing, it is apparent that the applicant is merely a dissatisfied litigant seeking to obtain relief from this Court in circumstances where no sustainable constitutional infraction arises. In the final analysis, the applicant has failed to establish a *prima facie* case justifying the constitutional review of the decision of the Supreme Court. Nor has he demonstrated any plausible prospects of success should leave for direct

access be granted. I am therefore amply satisfied that it would not be in the interests of justice to grant the relief sought in the present application.

In the result, the application for direct access cannot succeed. The applicant has undoubtedly failed to establish a sufficient basis to warrant the intervention of this Court for the relief that he seeks. In these circumstances, the inevitable result is that the application should be dismissed.

Accordingly, the application is dismissed with no order as to costs.

**GARWE JCC:** I agree.

**MAKARAU JCC:** I agree.

*Muchina Attorneys,* applicant's legal practitioners
*National Prosecuting Authority,* respondent's legal practitioners